

Tentative Rulings for Department 503

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Tentative Ruling

Re: **Melissa Salazar v. Western Valley Meat Company**
Superior Court Case No. 25CECG05364

Hearing Date: May 21, 2026 (Dept. 503)

Motion: Defendant Western Valley Meat Company's Motion to
Compel Arbitration and Stay the Proceedings

Tentative Ruling:

To grant Defendant Western Valley Meat Company's motion to compel arbitration of all of plaintiff Melissa Salazar individual claims. The Court hereby stays the entire action pending resolution of the arbitration proceeding.

Explanation:

On November 14, 2025, plaintiff Melissa Salazar, ("Salazar" or plaintiff") filed her complaint alleging 11 causes of action, on the basis that she was discriminated, harassed and retaliated against on account of her disability. Defendant Western Valley Meat Company ("Western Valley" or "defendant") filed this motion to compel arbitration on January 7, 2026, pursuant to the Federal Arbitration Act (9 U.S.C. section 1, et seq.), or under the California Arbitration Act. (Code Civ. Proc., § 1281.2, et seq.)

Legal Standard

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) "Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute." (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

The party moving to compel arbitration bears the burden of proving by a preponderance of the evidence the existence of an arbitration agreement. (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 18; *Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 683.) After the moving party establishes the existence of an arbitration agreement between the parties, then the burden shifts to the opposing party to show that the agreement is otherwise unenforceable. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Existence of an Agreement to Arbitrate

Western Valley argues that the present action is subject to arbitration. Salazar began working for Western Valley early January 2025. As part of the onboarding process with Western Valley, Salazar received the Mutual Agreement to Arbitrate Employment

Disputes (the "Agreement"), was able to review and signed indicating she had done so, and returned the Arbitration Agreement on January 6, 2025. (Edia Perez-Owens Declaration, ¶¶ 5-7.) The Agreement expressly states: "Employee may seek an attorney for advice regarding the effect of this Agreement prior to signing it." (*Id.*, Ex. B, ¶9.) On January 6, 2025, Salazar executed the Agreement. (*Id.*, Ex. B.)

Because Western Valley has adequately established the existence of an Arbitration Agreement that is governed by the FAA, the burden now shifts to Salazar to establish any defenses to the enforcement of this provision. In opposition, Salazar argues that arbitration should be denied because the Agreement is both procedurally and substantively unconscionable.

Unconscionability

"[P]rocedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 102.) Courts invoke a sliding scale which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves, i.e., the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. (*Id.*, at pg. 114.) Plaintiff bears the burden of proving that the provision at issue is both procedurally and substantively unconscionable.

Procedural Unconscionability

"The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power." (*Alvarez v. Altamed Health Servs. Corp.* (2021) 60 Cal.App.5th 572 589, as modified (Mar. 4, 2021.)

"A procedural unconscionability analysis 'begins with an inquiry into whether the contract is one of adhesion.' [Citation.] An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power 'on a take-it-or-leave-it basis.'" (*OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 126 ("OTO").) "Arbitration contracts imposed as a condition of employment are typically adhesive[.] The pertinent question, then, is whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required." (*Ibid.*) "Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form." (*Ibid.*)

It is not disputed by either side that the Arbitration Agreement was a condition of employment and thus minimally adhesive, typical of standardized employment contracts.

Salazar argues that the Agreement is procedurally unconscionable because: the Agreement is oppressive as the Agreement is a non-negotiable condition of

employment and that Salazar felt rushed to sign it; “surprise” exists as that Federal Arbitration Act was not attached to the Agreement (Salazar Decl., ¶7). Salazar analogizes her situation to the recent California Supreme Court decision in *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93 (“*Fuentes*”), where the Supreme Court held “that a rushed onboarding process constitutes “significant oppression,” and that relying on a “prolix printed form” filled with legal jargon and unexplained statutory references creates “an unusually high degree of surprise.”” (Salazar’s Opposition papers, pg. 3, Ins. 21-23.)

However, *Fuentes* is wholly distinguishable from the present case. The Supreme Court found the existence “oppression” when the employee was only given about five minutes to review the entire onboarding packet before being rushed off to a mandatory drug test (*Fuentes, supra*, 19Cal.5th. at p.104), and the existence of “surprise” where that arbitration agreement was “printed in a tiny, blurry font” and “consist[ed] of a “mammoth” paragraph consisting of “something like 900 words,” with 35 lines squeezed into “about three vertical inches” of text.” (*Id.* at p. 104 [citations omitted].)

Salazar’s circumstances are different where Salazar does not submit evidence that anyone asked her to hurry or told her she had to sign the Agreement. Salazar’s declaration makes clear that she simply assumed she needed to sign the paperwork to proceed with employment. (Salazar Decl., ¶ 5.)

Furthermore, the present Agreement is three pages long in regular size font and it is divided into separate sections. (Perez-Owens Decl., Ex. B.) The Agreement’s title provides notice that this is an agreement for dispute resolution stating “MUTUAL AGREEMENT TO ARBITRATE EMPLOYMENT DISPUTES.” (Perez-Owens Decl. Decl., Exs. A and B.) Courts have held that the failure to attach a copy of the outside rules does not render an arbitration agreement procedurally unconscionable, especially where such rules are easily accessible on the internet. (*Boghos v. Certain Underwriters at Lloyd's of London* (2005) 36 Cal.4th 495, 505, fn. 6.)

Finally, although Salazar was not represented by an attorney, the Agreement expressly states: “Employee may seek an attorney for advice regarding the effect of this Agreement prior to signing it.” (Perez-Owens Decl., Ex. B, ¶9.)

Accordingly, the Court finds a very low level of procedural unconscionability typical of enforceable employment arbitration agreements.

Substantive Unconscionability

Substantive unconscionability focuses on overly harsh or one-sided results. (*Armendariz, supra*, 24 Cal. 4th at p. 114.) Salazar argues two provisions of the Agreement are unconscionable: (1) Paragraph 1 stating the Agreement “shall not be interpreted to restrict the Parties’ rights to seek provisional injunctive relief in an appropriate forum” lacks mutuality; and (2) Paragraph 3 imposes an onerous and highly technical pre-arbitration notice requirement where a plaintiff is required to send written notice the “Agent of Service of Record for the Company filed with the Secretary of State.”

Mutuality

Salazar argues that the phrase “shall not be interpreted to restrict the Parties’ rights to seek provisional injunctive relief in an appropriate forum” lacks mutuality because “[in the employment context, it is the employer who seeks provisional injunctive **relief for trade secret misappropriation or breach of restrictive covenants**. This provision systematically favors the employer by preserving court access for the injunctive relief Defendants are most likely to seek, while forcing Plaintiff to arbitrate her damages-based discrimination and wage claims.” (Salazar’s Opposition Papers, pg. 4, Ins. 8-12. [Emphasis added.])

However, Salazar fails to demonstrate how the aforementioned phrase has anything to do with “trade secret misappropriation” or “restrictive covenants.” All that phrase does is simply reference the parties’ rights under Code of Civil Procedure section 1281.8, and allowing either party to seek provisional injunctive relief during arbitration is not unconscionable. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 499 citing *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1247.)

Accordingly, this Court does not find that the phrase “shall not be interpreted to restrict the Parties’ rights to seek provisional injunctive relief in an appropriate forum” to lack mutuality.

Highly Onerous and Technical Pre-Arbitration Notice Requirement

Salazar next argues that Paragraph 3 “imposes an onerous and highly technical pre-arbitration notice requirement” (Salazar’s Opposition Papers, pg. 4, Ins. 816-17) by requiring Salazar to send written notice of her claim to the “Agent for Service of Record for the Company filed with the Secretary of State.”

Salazar contends, without evidence, that a layperson typically does not know what an Agent for Service of Process is, and does not possess the “sophistication” to navigate the California Secretary of State website. Salazar provides no evidence to support the same.

However, Western Valley adequately points out that under these circumstances, “Plaintiff had no issue serving her lawsuit on Defendant, and therefore, the contention is irrelevant.” (Western Valley Reply Papers, pg. 6, Ins. 7-8.)

Therefore, Salazar has not met her burden of establishing that the any provisions in the Agreement are substantively unconscionable.

Accordingly, Western Valley’s motion to compel arbitration is granted, and this action is stayed pending the resolution of the arbitration. (Code of Civ. Proc., §1281.4.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 5/19/2026.
(Judge’s initials) (Date)